

ALTA SUNSET, LLC
2950 SW 27th Avenue
Suite 220
Miami, Florida 33133

MAESTRA SUNSET, LLC
Av Las Condes 11283
Piso 9 Torre B.
Región Metropolitana, Chile

January 27, 2022

VIA EMAIL (PDF) AND UPS

Sunset-Miami Investments, Inc
1313 Ponce de Leon Boulevard,
Suite 200
Coral Gables, Florida 33134
Attention: G. Frank Quesada, Esq
Email: gfq@qvlaw.net

Teresa Sordo
P.O BOX 1044
Mayaguez, P.R. 00681
Email: tsordo1@hotmail.com

Re: Ground Lease dated September 1, 2018, as amended by that certain Amendment to Ground Lease dated September 8, 2020 (collectively, the "**Ground Lease**") by and between SUNSET-MIAMI INVESTMENTS, INC., a Florida corporation ("**Landlord**"), and ALTA SUNSET, LLC, a Florida limited liability company ("**Tenant**"). Unless otherwise defined herein, all capitalized terms used in this letter shall have the meanings set forth in the Ground Lease.

Dear Mr. Quesada and Ms. Sordo:

As you are aware, by letter dated December 3, 2021 from Tenant to Landlord, Tenant has exercised its right under Article 22 of the Ground Lease to extend the Building Permit Expiration Date for an additional six (6) months from February 1, 2022 to August 1, 2022. In connection with said extension, MAESTRA SUNSET LLC, a Florida limited liability company ("**Buyer**"), which has entered into a Purchase and Sale agreement with Seller which includes an assignment of the Ground Lease, has deposited with the Lease Escrow Agent on behalf of Seller the sum of \$250,000 in payment of the Option to Extend Deposit required under Article 22 of the Ground Lease.

If and to the extent that the Option to Extend Deposit is released by Landlord pursuant to the terms and conditions of the Ground Lease, the Option to Extend Deposit shall be directly transferred to Buyer pursuant to wire transfer instructions to be provided to Lease Escrow Agent by Buyer. Tenant hereby expressly authorizes and directs the Lease Escrow Agent to return the \$250,000 Option to Extend Deposit directly to Buyer without any further authorization from Tenant.

We also take this opportunity to request a further extension of the Building Permit Expiration Date from August 1, 2022 through December 31, 2022 due to delays in the processing of Buyer's application as a result of proposed rezoning of the Property. Please let us know if you need any additional information in connection with this request. Your consideration of our request is sincerely appreciated.

Very truly yours,

ALTA SUNSET, LLC, a Florida limited liability company

By: 
Name: Raimundo Onetto
Title: Authorize Rep

MAESTRA SUNSET, LLC, a Florida limited liability company

ROBERT WILLIAM SOMMERHOFF
By: HYDE
Name: _____
Title: _____

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ROBERT WILLIAM SOMMERHOFF
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